

25VECV05046 25VECV05046

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-02

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CO%2C07%2F02%2F2026

Source SHA-256: 14d6cb5a5f761af6302540d894cfdba1fbf0089a5b1ca9ad646390611b6a4e20

Case Number: 25VECV05046 Hearing Date: July 2, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MARIANNE DENIS, an individual,

Plaintiff,

vs.

TARZANA ASSISTED LIVING, LLC; ATRIA SENIOR LIVING, INC.; ATRIA MANAGEMENT
COMPANY, LLC; IRMA ARTEAGA; NUNE GEZALIAN; and DOES 1 to 100,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO.: 25VECV05046

ORDER

SUSTAINING IN PART DEFENDANTS' DEMURRER WITH LEAVE TO AMEND

I.

BACKGROUND

This case arises out of a dispute between Plaintiff Marianne Denis ("Plaintiff") and Defendants Tarzana Assisted Living, LLC ("Tarzana"), Atria Senior Living, Inc. ("Atria Senior Living"), Atria Management Company, LLC ("Atria Management"), Irma Arteaga ("Arteaga"), Nune Gezalian ("Gezalian"), Doe 1 ("Walter"), and WG Tarzana, LP dba Atria Tarzana ("WG Tarzana") (collectively, "Defendants") arising out of the death of Plaintiff's spouse, Joseph Alexis Denis ("Decedent"), an employee at

Defendants' senior living facility who suffered a fatal cardiac event while on an authorized meal break in a vacant, locked apartment to which he was given unauthorized access by a coworker ("Walter"), and was not discovered or aided for several hours due to alleged failures in key control, monitoring, and emergency response procedures by Defendants.

Defendants WG Tarzana, Atria

Senior Living, Atria Management Company, Arteaga, and Gezalian demurrer to the Second Amended Complaint ("SAC")

on the grounds it fails to state facts sufficient to constitute a cause of action and is uncertain.

II.

PROCEDURAL

HISTORY

On September 5, 2025, Plaintiff filed a Complaint alleging (1) Negligence (Wrongful Death) and (2) Negligent Hiring, Retention, and Supervision against Defendants.

On November 21, 2025, Plaintiff filed her First Amended Complaint alleging the same causes of action.

On December 8, 2025, the Court granted Plaintiff's request for dismissal of Tarzana Assisted Living, LLC.

On April 3, 2026, the Court sustained Defendants' Demurrer with leave to amend.

On April 17, 2026, Plaintiff filed her SAC alleging (1) Negligence (Wrongful Death), (2) Negligent Hiring, Retention, and Supervision, and (3) Negligent Undertaking.

On May 19, 2026, Defendants filed the instant Demurrer.

On June 18, 2026, Plaintiff filed an Opposition.

On June 25, 2026,
Defendants filed a Reply.

III.

MEET AND CONFER

Before filing

a demurrer or motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer or motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (See Code Civ. Proc. § 430.41(a), §435.5(a).) A declaration must be filed with a demurrer regarding the results of the meet and confer process. (See Code Civ. Proc. § 430.41(a)(3).)

The Court

finds Defendants satisfied their meet and confer obligation by telephone. (See Declaration of Wendy E. Coulston filed May 19, 2026, ¶ 5.) In addition, the Court expects Plaintiff's counsel to be more accommodating when it comes to opposing counsel's scheduling issues. (See *id.*, ¶¶ 5-7.) The life of a litigator is stressful enough given the deadline driven nature of the profession and in the Court's experience, a little kindness and courtesy go a long way in setting the right tone for the entire lifespan of a case that only ends up benefitting the client in the long run; inevitably, the attorney who gives a courtesy one day ends up needing reciprocity in the future.

IV.

LEGAL STANDARD

A demurrer

may be brought if insufficient facts are stated to support the cause of action asserted. (See Code Civ. Proc. § 430.10(e).)[1] "A

demurrer tests the sufficiency of a complaint as a matter of law." *¿* (Durell v. Sharp Healthcare, (2010) 183 Cal.App.4th 1350, 1358.) "[T]he court

gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded." *¿* (Id.)

Allegations are to be liberally construed. (See Code Civ. Proc. § 452.)

In testing the sufficiency

of the complaint, the court must assume the truth of (1) the properly pleaded factual allegations; (2) facts that can be reasonably inferred from those expressly pleaded; and (3) judicially noticed matters. (See *Blank v. Kirwan*, (1985) 39 Cal.3d 311, 318.) A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. (See *SKF Farms v. Superior Court*, (1984) 153 Cal.App.3d 902, 905.) Accordingly, “[w]hether the plaintiff will be able to prove the pleaded facts is irrelevant to ruling upon the demurrer.” (*Stevens v. Superior Court*, (1986) 180 Cal.App.3d 605, 609-610.) To the extent factual allegations conflict with the content of the exhibits to the complaint, we rely on and accept as true the contents of the exhibits and treat as surplusage the pleader’s allegations as to the legal effect of the exhibits. (See *Barnett v. Fireman’s Fund Ins. Co.* (2001) 90 Cal.App.4th 500, 505.) A demurrer can only be sustained when it disposes of an entire cause of action. (See *Poizner v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119; *Kong v. City of Hawaiian Gardens Redev. Agency* (2003) 108 Cal.App.4th 1028, 1046.)

A demurrer may be brought if the pleading is uncertain, ambiguous, or unintelligible. (See Code Civ. Proc. § 430.10(f).) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of California, Inc.* (1993) 14 Cal.App.4th 612, 616.) As a result, a special demurrer for uncertainty is not intended to reach failure to incorporate sufficient facts in the pleading but is directed only at uncertainty existing in the allegations already made. (See *People v. Taliaferro* (1957) 149 Cal.App.2d 822, 825.) Where complaint is sufficient to state a cause of action and to apprise defendant of issues he is to meet, it is not properly subject to a special demurrer for uncertainty. (See *ibid.*; see also *Gressley v. Williams* (1961) 193 Cal.App.2d 636, 643 “[a] special demurrer [for uncertainty] should be overruled where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet”].)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 348.) The burden is on the complainant to show the Court

a pleading can be amended successfully. (See *id.*) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

V.

ANALYSIS

A.

Demurrer for Uncertainty is overruled.

As an initial matter, the Court OVERRULES Defendants’ demurrer for uncertainty pursuant to Code of Civil Procedure § 430.10(f) to the first and second causes of action on grounds that demurrers for uncertainty are disfavored and should only be sustained where the complaint is so uncertain that the demurring defendant cannot reasonably respond thereto. (See, e.g., *Khoury*, 14 Cal.App.4th at 616). Here, Plaintiff’s SAC is sufficient to apprise Defendants of the issues presented and not so uncertain Defendants cannot reasonably respond thereto. Moreover, even if the pleading is somewhat vague, “ambiguities can be clarified under modern discovery procedures.” (*Id.*)

B.

Demurrer for Failure to State Facts

1.

Additional Plaintiffs and Causes of Action.

Defendants

argue Decedent’s son is improperly pled as a new plaintiff. (See Dem. at 5:23-26.) Defendants argue the third cause of action exceeds the scope of amendment after its prior demurrer was sustained. (See Dem. at 5:11-19.)

The proper procedural mechanism to attack a pleading that improperly names a new party or cause of action without leave of court is through a motion to strike. (See Code Civ. Proc. § 436.) Moreover, there is no basis for the Court to strike the pleading at its own discretion as the Court agrees with Plaintiff the SAC does not formally join Decedent’s son as a plaintiff or seek relief in his name. (See *id.*)

Additionally,

the Court agrees with Plaintiff the third cause of action for negligent undertaking does not allege a new cause of action, but rather another negligence theory. “The ‘fundamental element’ for every negligence cause of action is the ‘the existence of a legal duty of care running from the defendant to the plaintiff.’ (Citations omitted.) ‘A duty may arise through statute, contract, or the relationship of the parties.’ (Citations omitted.) California also recognizes a common law duty in certain circumstances based on the theory of negligent undertaking. (Citations omitted).” (Lichtman v. Siemens Industry Inc. (2017) 16 Cal.App.5th 914, 920.) The Court agrees paragraphs 51-54 should be pled under the first cause of action in any subsequent amended pleading, not under a third cause of action.

2.

1st COA - Negligence
(Wrongful Death)

The elements of a wrongful death cause of action are “(1) a ‘wrongful act or neglect’ on the part of one or more persons that (2) ‘cause[s]’ (3) the ‘death of [another] person.’” (Norgart v. Upjohn Co. (1999) 21 Cal.4th 383, 390.)

“In any action for wrongful death resulting from negligence, the complaint must contain allegations as to all the elements of actionable negligence.” (Jacoves v. United Merchandising Corp. (1992) 9 Cal.App.4th 88, 105.) “Actionable negligence involves a legal duty to use due care, a breach of such legal duty, and the breach as the proximate or legal cause of the resulting injury.” (United States Liab. Ins. Co. v. Haidinger-Hayes, Inc. (1970) 1 Cal.3d 586, 594.) “California deems employers to be vicariously liable for the torts committed by their employees if, but only if, the employee is acting within the scope of employment.” (Musgrove v. Silver (2022) 82 Cal.App.5th 694, 707.)

Defendants

argue Plaintiff does not cure the duty defect identified in this Court’s April 3, 2026, Order. Defendants argue the SAC does not allege facts establishing Defendants had knowledge of a specific, immediate risk of harm requiring them to investigate Decedent’s absence or summon emergency assistance. (See

Dem. at 7:12-15; Reply at 2:11-15.) Defendants argue there is no more specificity alleged about the chest pain and tightness Decedent reported to Gezalian sufficient to establish duty. (See Dem., at 7:18-22.) Defendants argue Plaintiff's additional allegations concerning the inoperative security system on the date of incident, lax key control, and access of vacant apartments by employees still do not establish Decedent's death was so foreseeable as to establish a duty or establish Defendants created the peril. (See Dem., at Reply at 3:3-16.) Defendants also argue paragraph 41 fails to allege duty as to Gezalian and Arteaga. (See Dem. at 12:16-17.) Further, Defendants argue *Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224 and *Morris v. De La Torre* (2005) 36 Cal.4th 260 are inapplicable because the special relationship in those cases concerned a patron and a proprietor and involved criminal acts by third parties. (See Dem. at 13:6-8; Reply at 4:14-17.) Thus, Plaintiff cannot rely on these cases to support a finding of a special relationship on the facts in this action.

In opposition, Plaintiff argues she alleges a specific immediate risk of harm giving rise to a duty to act. Plaintiff argues the SAC pleads a set of facts at paragraphs 14-15 and 26-27 that together establish a duty. (See Opp. at 10:12-23.) Plaintiff argues she alleges duty based on a special relationship, citing the same preceding paragraphs, and negligent undertaking. (See *id.*, at 11:1-23, citing *Delgado v. Trax Bar & Grill* (2005) 36 Cal.4th 224 and *Morris v. De La Torre* (2005) 36 Cal.4th 260.) Plaintiff argues paragraph 41 alleges Gezalian's duty and concedes that at minimum, the SAC fails to allege Arteaga had notice of Decedent's absence but she was nonetheless negligent in enforcing security measures. (See Opp. at 12:24-13:7.)

The Court finds Plaintiff cured the defects concerning duty and causation. The Court will next address the special relationship and negligent undertaking doctrines.

a.

Duty

The special relationship doctrine is inapplicable here. Under the special relationship exception to the general no-duty-to-protect from conduct of third parties rule, a defendant may owe a duty to protect the plaintiff from third party conduct if the defendant has a special relationship with either the plaintiff or the third party. (See *Barenborg*

v. Sigma Alpha Epsilon Fraternity (2019) 33 Cal.App.5th 70, 76.) “A special relationship between the defendant and the victim is one that ‘gives the victim a right to expect’ protection from the defendant, while a special relationship between the defendant and the dangerous third party is one that ‘entails an ability to control [the third party’s] conduct.’ [Citation.] Relationships between parents and children, colleges and students, employers and employees...are all examples of special relationships that give rise to an affirmative duty to protect. [Citation.] The existence of such a special relationship puts the defendant in a unique position to protect the plaintiff from injury.” (Brown v. USA Taekwondo (2021) 11 Cal.5th 204, 216.)

Here, the SAC

alleges “Defendants had a special relationship with Decedent...[that] created an affirmative duty...to protect persons on those premises from foreseeable harm, including harm from medical emergencies in concealed locations that Defendants’ own operational failures rendered undetectable.” (SAC, ¶ 38a.) The special relationship doctrine, however, does not apply to these allegations. While Plaintiff alleges a special relationship existed between Decedent and Defendants as employee and employer, Plaintiff does not allege Decedent was owed protection from third-party conduct, but rather from “medical emergencies in concealed locations”. Because the SAC does not plead harm caused by a third party, the special relationship doctrine is not applicable.

However, the

Court finds Plaintiff alleges the negligent undertaking doctrine to support the finding of a duty. Under the negligent undertaking doctrine, “a volunteer who, having no initial duty to do so, undertakes to provide protective services to another, will be found to have a duty to exercise due care in the performance of that undertaking.” (Delgado v. Trax Bar & Grill (2005) 36 Cal.4th 224, 249-250.) “To establish a duty of care to a third person based on the negligent undertaking doctrine, a plaintiff must show: (1) the defendant undertook to render services to another; (2) the services were of the kind the defendant should have recognized as necessary for the protection of third persons; and (3) either (a) the defendant’s failure to exercise reasonable care increased the risk of harm beyond what existed without the undertaking, (b) the undertaking was to perform a duty owed by the other to the third persons, or (c) a harm was suffered because the other or third persons relied on the undertaking.” “[T]he scope of any duty assumed depends upon the nature of the undertaking.” (Delgado, 36 Cal.4th at 249-250.) “[W]hile [t]he precise nature and extent of [an alleged section 324A] duty ‘is a question of law ... it depends on the

nature and extent of the act undertaken, a question of fact.” (Artiglio v. Corning Inc. (1998) 18 Cal.4th 604, 615 [internal quotations omitted and emphasis added].)

Here, the SAC

alleges Defendants undertook to provide protective and safety measures at the Facility including key control access for vacant apartments, surveillance camera systems, employee welfare check procedures and protocols for locating missing personnel, and emergency response protocols. (See SAC, ¶ 51.) The SAC alleges Defendants negligently performed these tasks in part by “fail[ing] to conduct a prompt welfare check or search when Decedent was reported missing despite knowledge of his recent cardiac symptoms; and (d) fail[ing] to activate 911 despite actual notice of facts indicating a medical emergency.” (Id., ¶ 52.) Though the SAC alleges Defendants collectively failed to perform these tasks, the Court notes the SAC contradictorily alleges Defendants, through Gazelian, ordered Decedent’s coworkers (employees of the non-individual defendants) to search the Facility for Decedent immediately upon receiving notice of Decedent’s absence and that coworkers did call 911 upon finding Decedent. (See SAC ¶¶ 26 and 30 but compare with ¶ 33 [alleging Facility staff did not search the Facility].)

It appears the

SAC focuses on Gezalian and Arteaga’s failure to personally conduct an employee search, call 911, and to maintain key and access control of vacant units to assert its negligence claim against these individuals and non-individual Defendants. (See id., ¶¶ 22, 41.) The SAC further alleges “Defendants’ negligent performance of these safety undertakings increased the risk of harm to Decedent by creating conditions in which a medical emergency in a vacant, locked apartment would go undetected for hours, and by delaying the discovery and emergency medical intervention that would have prevented Decedent’s death.” (Id.) The Court finds Plaintiff sufficiently alleges the first two elements of negligent undertaking, that Defendants negligently performed the tasks they undertook to keep the Facility and employees secure and safe.

Next, because

only subsection (a) of the third element of the negligent undertaking doctrine could be applicable under these facts, the Court focuses on whether this condition is alleged. Here, the SAC alleges Gazelian was informed by Decedent of his chest pain and tightness the week prior to the subject incident. (See SAC, ¶ 27.) The SAC also alleges Defendants knew employees frequently accessed

vacant apartments yet surveillance camera systems and access logging were nonfunctional or not reviewed. (See id., ¶ 23.) The SAC also alleges Decedent remained alive after the onset of his medical emergency and each hour that passed without medical intervention increased mortality. (See id., ¶¶ 31-32.) Construing the pleading liberally, a trier of fact could infer Defendants' failure, through Gezalian and Arteaga, to exercise reasonable care in performing surveillance, key control access monitoring and enforcement, and a personal search of Decedent or dialing 911 upon notification that Decedent was absent increased the risk of harm to Decedent.

Accordingly, the Court finds Plaintiff properly alleges Defendants had a duty based on the negligent undertaking doctrine.

b.

Causation

Defendants

argue the SAC's new allegations at paragraphs 26-29 fail to cure the causation defect. (See id., at 10:14-17; Reply at 4:1-2.) Defendants also argue Plaintiff's causation allegations are speculative because she fails to attach the coroner's report or medical literature to substantiate her allegations at paragraphs 31-32. (See id., at 11:15-19; See Reply at 3:24-27.)

Plaintiff

argues the SAC cures the causation defect by alleging Decedent had a survivability window and "[h]ad Defendants searched the Facility and summoned emergency medical services within a reasonable time after receiving notice of Decedent's prolonged absence and known cardiac symptoms, emergency medical personnel would have reached Decedent substantially sooner, during the survivability window for his progressive cardiac emergency." (See SAC, ¶ 33, 35.) Plaintiff argues attaching as evidence the coroner's report or medical literature is not required at the pleadings stage. (See Opp. at 14:3-5.)

This Court

previously found causation was insufficiently alleged because "the FAC does not allege facts showing any action by Defendants would have resulted in earlier discovery or effective medical intervention." (April 3, 2026, Order.) Liberally construing the SAC, the Court finds the SAC cures this defect because the SAC now alleges Gezalian had knowledge concerning Decedent's health and she should have

called 911 immediately upon receiving notice of his prolonged absence, and failure to do so increased Decedent's mortality. The Court agrees with Plaintiff concerning the parties' dispute over whether Plaintiff should have attached the coroner report and referenced medical literature; this is not required. Thus, Plaintiff alleges Defendants' negligence in delaying searching for Decedent or calling 911 proximately caused injury to Decedent. Thus, liberally construing the SAC, the Court finds the negligence claim survives demurrer.

The Court

OVERRULES Defendants' Demurrer to the first cause of action for negligence.

3.

2nd COA - Negligent

Retention and Supervision

"[A]n

employer can be liable to a third person for negligently hiring, supervising, or retaining an unfit employee." (Doe v. Capital Cities (1996) 50

Cal.App.4th 1038, 1054.) The elements of a cause of action for negligent hiring, retention, or supervision are (1) the employer's hiring, retaining, or supervising an employee; (2) the employee was incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) harm occurs. (Evan F. v. Hughson United Methodist Church (1992) 8 Cal.App.4th 828, 836-837.)

"To establish

negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor's propensity to do the bad act." (See Z.V. v. County of Riverside (2015) 238

Cal.App.4th 889, 902; Doe, supra, 50 Cal.App.4th at 1054.) "[T]he cornerstone of a negligent hiring theory is the risk that the employee will act in a certain way and the employee does act in that way." (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054-1055.)

Defendants argue the negligent retention

claim remains defective as to notice of Walter's unfitness and that Walter's conduct was outside the scope of employment and unforeseeable. (See Dem. at 14:11-15:4; Reply at 5:7-19.)

In

opposition, Plaintiff argues the SAC's allegations that Walter repeatedly accessed vacant rooms alleges unfitness. (See Opp. at 16:6-14, citing ¶¶ 23-24, 47-48.)

The Court finds the defect is not cured.

Previously, the Court found the FAC failed to allege that any "Defendant had prior notice of a propensity for the type of conduct alleged. Allegations Walter provided unauthorized access on the same day as the incident, without more, are insufficient to establish Defendants knew or should have known of his unfitness before the harm occurred." (April 3, 2026, Order, 10:12-15.) Here, the SAC alleges Walter engaged in unauthorized use of vacant apartments and Defendants knew of this propensity. (See SAC, ¶¶ 47d, 24.) The Court finds these allegations insufficient to allege the notice element because the most that can be extracted from the SAC's allegations is that Defendants knew Walter accessed vacant rooms and gave others access to vacant rooms. However, this does not allege knowledge of Walter's propensity to "do the bad act" that caused Decedent physical harm here, namely, abandoning Decedent after witnessing him suffer a medical emergency, taking his cellphone, and proceeding by not notifying anyone. (See id., ¶¶ 19-20, 46.)

Accordingly, the Court SUSTAINS Defendants' Demurrer to the second cause of action for negligent hiring, retention, and supervision WITH LEAVE TO AMEND.

VI.

CONCLUSION

Based on the foregoing, the Court SUSTAINS IN PART Defendants' Demurrer. More specifically, the Court SUSTAINS the demurrer to the second cause of action for negligent hiring, retention, and supervision WITH LEAVE TO AMEND. However, the Court OVERRULES Defendants' Demurrer to the first cause of action for negligence.

Plaintiff has leave to file an amended complaint on or before July 17, 2026.

The Court continues the Case Management Conference from August 6, 2026, to October 29, 2026, at 8:30 a.m.

IT
IS SO ORDERED.

DATED: July 2, 2026

Hon. Michael R. Amerian

Judge,
Superior Court

[1] All statutory references
are to California codes unless stated otherwise.